

Hari Ram vs State & Anr on 5 September, 2017

Author: Sandeep Mehta

Bench: Sandeep Mehta

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Revision No. 7 / 2017

Hari Ram S/o Shri Kanwar Lal Ji Meena, Aged About 39 Years,
Binda, P.s. Ghatoli, Tehsil- Akhlera, District- Jhalawar.

----Petitioner

Versus

1. The State of Rajasthan

2. Smt. Sumanlata Meena D/o Shri Raj Singh, R/o-c-57, Kumbha
Nagar, Chittorgarh (raj.).

----Respondents

For Petitioner(s) : Mr. Ashwini Kumar Babel.

For Respondent(s) : Mr. O.P. Rathi, PP.

None present for the respondent No.2.

HON'BLE MR. JUSTICE SANDEEP MEHTA

Judgment Date of Judgment:- 05/09/2017 By way of this revision petition, the petitioner accused Hari Ram seeks to assail the order dated 30.11.2016 passed by the learned Additional Sessions Judge No.1, Chittorgarh in Sessions Case No.34/2014 whereby, charges were framed against the appellant for the offences under Sections 493, 496, 420 and 376 IPC.

Service of the revision has been effected upon the respondent No.2 Smt. 'S' being the complainant of the case at hand, but nobody has put in appearance on her behalf.

Facts in brief are that the respondent No.2, lodged a report against the petitioner herein and four other persons before the Superintendent of Police, Chittorgarh on 28.05.2013 alleging inter (2 of 8) [CRLR-7/2017] alia that she was married to one Bhanwar Singh Meena of Luhari Kala, Tehsil Jahajpur, District Bhilwara in the year 2003 and a male child was born from the wedlock who at the time of lodging of the report was aged 8 years. It was further alleged that after the birth of the child, Bhanwar Singh Meena started quarreling with the lady and their matrimonial relations became strained. Consequently, they had started living separately for the last 3-4 years and ceased to have any kind of relationship. The complainant, after being deserted by her husband, got admission in the GNM Course at Bhilwara and started living there. The accused Hari Ram, who was related to her uncle, came in touch with her. He used to confide in her that he was previously married to one Anita but owing to a matrimonial dispute, both were living separately for the last two years and that he was in search of a life partner and managed to seduce the complainant with these false assurances. In this manner, the accused seduced the complainant and took her to Arya Samaj at Kota and

solemnised a farce marriage ceremony with her. Thereafter, Hari ram started establishing regular physical relations with her. She was taken by the accused, to visit various places and the physical relations continued unabated. Upon her father coming to know of this relationship, he called the accused to Chittorgarh on 19.10.2012 and compelled him to execute an undertaking on a stamp paper of Rs.100/- in which the accused promised that he would give status of legally wedded wife to the complainant and that she would get rights in his movable and immovable properties which included a house at Aklera. However, a little later, the accused severed his contact with the lady who (3 of 8) [CRLR-7/2017] became worried and went to the house of the accused at Aklera. She was shocked to find that Anita the first wife of the accused was residing at that house with her two children. The family members of the accused refused to accept the complainant as his legally wedded wife and she was thrown out of the house after being assaulted. The complainant thus alleged in the complaint that the accused fraudulently induced her to enter into a make believe marriage ceremony and sexually exploited her under a false promise of marriage. The complainant prayed that the accused be prosecuted and punished for the various offences including the offence of rape under false promise of marriage. During the course of investigation, the statement of the complainant was recorded under Section 164 Cr.P.C. It is significant to note here that neither in the detailed complaint nor in the statement recorded under Section 164 Cr.P.C., did the complainant allege that her previous marriage with Bhanwar Singh Meena had ever been dissolved. Be that as it may. The investigating officer also, did not delve into this aspect and proceeded to file a charge-sheet against the accused for the offences mentioned above. The accused contested the charges before the learned trial court and claimed discharge. However, the trial court turned down the said order and proceeded to frame charges against the accused as stated above. Hence, this revision.

I have heard the arguments advanced by Shri Ashwini Kumar Babel learned counsel representing the petitioner and the learned Public Prosecutor and have gone through the impugned order as well as the challan papers.

(4 of 8) [CRLR-7/2017] Shri Babel relied upon the Supreme Court decision in the case of Prashant Bharti vs. State of NCT of Delhi, reported in AIR 2013 SC 2753 and urged that admittedly, the relations established between prosecutrix and the accused petitioner were totally consensual even as per the case set out in detailed written report as well as the statements of the complainant recorded under Section 161 and 164 Cr.P.C. He urged that it is evident from these material pieces of evidence that the prosecutrix was married to one Shri Bhanwar Singh Meena when she established the illicit liaison with the accused. Neither in the FIR nor in her statements recorded under Section 161 or 164 Cr.P.C., did the prosecutrix disclose that her marriage with Shri Bhanwar Singh had been legally annulled. He urged that in such a situation, it was fool hardy of the prosecutrix to expect that she could enter into a valid marriage with the petitioner. He urged that the learned trial court did not advert to this inherent lacuna in the prosecution case and mechanically proceeded to frame charges against the accused in a totally unjustified manner. He thus implored that the impugned order dated 30.11.2016 being grossly illegal should be quashed while accepting the revision.

Per contra, learned Public Prosecutor vehemently opposed the submissions advanced by the petitioner's counsel and urged that the petitioner intentionally mislead the prosecutrix to believe

that his marriage with Smt. Anita was no longer in existence. In order to convince the prosecutrix regarding this false assurance, the accused also executed a make believe agreement in which he assured that he would be taking care of the complainant in future (5 of 8) [CRLR-7/2017] and would give her the status of a legally wedded wife. He pointed out that in the earlier, the learned Additional Sessions passed a non-speaking order dated 29.11.2014 and directed framing of charges for the same offences against the petitioner who challenged the order passed by the learned Additional Sessions Judge by filing a revision petition No.51/2015 in this Court. This Court held that the order framing charges was unreasoned and the incriminating material on record was not discussed by the trial court and accordingly, the order framing charges was set aside and the matter was remanded to the trial court to pass a fresh order on the question of charges after hearing the parties.

Shri Babel urged that the learned trial court did not advert to the admitted factual position regarding the petitioner as well as the complainant being married from before and the virtual legal bar on a fresh marriage while their earlier marriages still subsisted.

I have heard the arguments advanced by the learned counsel for the parties and have gone through the material available on record.

The prosecutrix has categorically mentioned in her complaint as well as in her statements recorded under Section 161 and 164 Cr.P.C. that she was married to Shri Bhanwar Singh Meena. Neither in the report nor in the entire investigation, did the prosecutrix allege that her marriage with Bhanwar Singh Meena had been dissolved. It was not even mentioned in the report that she and Bhanwar Singh had divorced customarily. It is the admitted case of the prosecutrix that she was aware of the (6 of 8) [CRLR-7/2017] petitioner's subsisting marriage with Smt. Anita. There is no allegation of the prosecutrix that the petitioner ever suggested to her that he had divorced Smt. Anita. Even in the affidavit executed by the petitioner, it has been mentioned that he was living separately from his wife Smt. Anita for the last two years. Thus apparently, in this affidavit as well, the existing marital status of the petitioner is clearly spelt out. The said affidavit was allegedly executed on the instructions of the complainant's father. Manifestly thus, marriage of the petitioner and the prosecutrix was impossible as it was prohibited by law because, both were having subsisting marriages when they entered into a relationship which legally is nothing short of an illicit extramarital affair and hence the prosecution of the petitioner for the above offences is absolutely unjustified. The situation at hand is squarely covered by the Supreme Court decision in the case of Prashant Bharti (supra) wherein, the Hon'ble Apex Court considered almost an identical situation and held that as the complainant therein was married from before, there was no question of her being induced into a marriage. The Hon'ble Apex Court held as below:

"16. The factual position narrated above would enable us to draw some positive inferences on the assertion made by the complainant/prosecuterix - against the appellant-accused (in the supplementary statement dated 21.2.2007). It is relevant to notice, that she had alleged, that she was induced into a physical relationship by Prashant Bharti, on the assurance that he would marry her. Obviously, an inducement for marriage is understandable if the same is made to an unmarried person. The judgment and decree dated 23.9.2008 reveals, that the

complainant/prosecuterix was married to Lalji Porwal on 14.6.2003. It also reveals, that the aforesaid marriage subsisted till 23.9.2008, when the two (7 of 8) [CRLR-7/2017] divorced one another by mutual consent under Section 13B of the Hindu Marriage Act. In her supplementary statement dated 21.2.2007, the complainant/prosecuterix accused Prashant Bhati of having had physical relations with her on 23.12.2006, 25.12.2006 and 1.1.2007 at his residence, on the basis of a false promise to marry her. It is apparent from irrefutable evidence, that during the dates under reference and for a period of more than one year and eight months thereafter, she had remained married to Lalji Porwal. In such a fact situation, the assertion made by the complainant/prosecuterix, that the appellant-accused had physical relations with her, on the assurance that he would marry her, is per se false and as such, unacceptable. She, more than anybody else, was clearly aware of the fact that she had a subsisting valid marriage with Lalji Porwal. Accordingly, there was no question of anyone being in a position to induce her into a physical relationship under an assurance of marriage. If the judgment and decree dated 23.9.2008 produced before us by the complainant/prosecuterix herself is taken into consideration alongwith the factual position depicted in the supplementary statement dated 21.2.2007, - it would clearly emerge, that the complainant/prosecuterix was in a relationship of adultery on 23.12.2006, 25.12.2006 and 1.1.2007 with the appellant-accused, while she was validly married to her previous husband Lalji Porwal. In the aforesaid view of the matter, we are satisfied that the assertion made by the complainant/prosecuterix, that she was induced to a physical relationship by Prashant Bharti, the appellant-accused, on the basis of a promise to marry her, stands irrefutably falsified."

In view of the discussion made hereinabove, I am of the firm opinion that the admitted highest allegations of the prosecution do not disclose the necessary and essential ingredients so as to justify framing of charge against the accused for the offences under Sections 493, 496, 420 and 376 IPC.

Resultantly, the revision petition deserves to be and is hereby allowed. The impugned order dated 30.11.2016 passed by (8 of 8) [CRLR-7/2017] the learned Additional Sessions Judge No.1, Chittorgarh in Sessions Case No.34/2014 is quashed and set aside as being grossly illegal.

(SANDEEP MEHTA)J. tikam daiya/